

**IN THE COURT OF APPEALS OF THE STATE OF WASHINGTON
COURT OF APPEALS NO. 84450-4**

**ZACKARIAH BENNETT,
Appellant,**

v.

**MELVINA MANNING,
Respondent.**

RESPONSE TO ORDER DENYING MOTION FOR JUDICIAL NOTICE

**Honorable Court of Appeals,
Honorable Judge Hazelrigg,**

I respectfully submit this response to the Court's order denying my motion for judicial notice filed on April 18, 2024. I wish to reiterate my request in accordance with ER 201(d) and clarify the relevance and appropriateness of the facts presented.

1. Legal Standard

ER 201(d) mandates that a court must take judicial notice of a fact if requested by a party and if that fact is not subject to reasonable dispute. The facts I sought to establish are crucial for understanding the legal context of my case and are well-supported by statutory authority and judicial precedent.

2. Relevant Facts

The facts in my initial motion included key aspects of the law governing domestic violence protection orders, specifically:

- Court Findings: Your previous opinion noted that the former chapter 26.50 RCW controlled the proceedings at the time the DVPO was issued, which underscores the importance of recognizing the legal standards that applied at that time, and the clear ex post facto error.

- The Repeal of Former Chapter 26.50 RCW for Chapter 7.105 RCW: This repeal, effective July 1, 2022, significantly altered the legal landscape governing domestic violence, particularly in relation to definitions and procedural standards, which were retroactively applied.

- The Distinction: Chapter 7.105 RCW introduced definitions and elements for domestic violence (specifically “unlawful harassment”) that did not exist under former chapter 26.50 RCW. This change is critical to understanding the parameters of domestic violence as it relates to my case.

These facts are foundational and directly influence whether the lower court's decision was consistent with the relevant statutory framework.

3. Addressing the Court's Concerns

If the Court expressed any reasons for denying my motion, I would like to address those points directly:

- **Relevance:** The facts I presented are essential for assessing whether the lower court acted within its jurisdiction and authority. They establish prima facie error in the court's ruling, necessitating reconsideration.

- **Dispute:** The facts are derived from established law and prior rulings, making them indisputable. Their acknowledgment is crucial for ensuring a fair and just outcome in this matter.

4. Conclusion

Given the clarity and relevance of the facts presented, I respectfully urge the Court to reconsider its denial of my motion for judicial notice. The implications of the lower court’s decision and the proper application of law merit this reconsideration.

I appreciate your attention to this matter.

Respectfully submitted,

Date: 09/25/2024

Under penalty of perjury

Zackariah Bennett


Words: 439